

Sheshdhar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 March 2023 · Writ - C No. 6292 of 2023 · **Writ disposed; liberty to object under clause 6.5; coercive action stayed.**

HEADNOTE

Writ seeking correction of an electricity bill dated 19.11.2022 disposed of without any opinion on merits, with liberty to file an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within three weeks. If filed in time, the objection is to be decided in accordance with law within the next three weeks after hearing. Coercive action on the demand is stayed for six weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Sheshdhar approached the Allahabad High Court in Writ-C No. 6292 of 2023 against the State of Uttar Pradesh and four others, aggrieved by his electricity bill dated 19 November 2022 and seeking its correction. Counsel for respondent nos. 2 to 5 submitted that a remedy lay under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. The order records neither the connection particulars, the billed amount, nor the specific error alleged in the demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to a disputed electricity bill

HOLDING

Without expressing any opinion on the merits, the writ petition is disposed of with liberty to the petitioner to submit an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within three weeks, together with a certified copy of the order. If the objection is filed within that period, respondent no. 3 shall decide it in accordance with law within the next three weeks after affording a reasonable opportunity of hearing. Until disposal of the objection or for six weeks, whichever is earlier, no coercive action shall be taken on the impugned demand. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ seeking correction of the 19.11.2022 bill was disposed of without a merits finding, with liberty to file an objection under paragraph 6.5 before respondent no. 3. ¶ 1

article-226-alternate-remedy-up-supply-code-6.5 Article 226 was not used to correct the bill; the petitioner was relegated to a paragraph 6.5 objection to be decided by respondent no. 3 in accordance with law after hearing. ¶ 1

6.5-representation-as-appropriate-remedy On the licensee's submission, paragraph 6.5 was treated as the appropriate remedy for correction of the disputed electricity bill. ¶ 1

para-6.5-objection-before-coercive-recovery Coercive action on the impugned demand was restrained for six weeks or until disposal of the paragraph 6.5 objection, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 19.11.2022

The Court expressed no opinion on the merits and left the objection, if filed in time, to be decided by respondent no. 3 under paragraph 6.5. ¶ 1

